

26SMCV02748 26SMCV02748

County: los-angeles

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Case Number: 26SMCV02748 Hearing Date: August 21, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ADANY SANCHEZ,

Plaintiff,

v.

UBER TECHNOLOGIES, INC., et al.,

Defendants.

Case No.: 26SMCV02748

Hearing Date: August 21, 2026

[TENTATIVE] order RE:

defendantS UBER TECHNOLOGIES,

INC., RASIER-CA, LLC AND RASIER,

LLC'S motion to strike

Plaintiff's punitive damages

claim

BACKGROUND

This is a negligence and negligent hiring case. On May 3, 2026, Defendant Osvaldo Del Rio drove his car into Plaintiff Adany Sanchez's car. (FAC ¶¶ 1, 5.) Plaintiff alleges that a few hours earlier, Del Rio struck a deputy with the Los Angeles Sheriff's Department during a traffic stop and fled the scene. (Id. at ¶ 3.)

Later that same day, Plaintiff alleges that Del Rio accessed the Uber platform and picked up a passenger. While he was driving the passenger, police identified his car and attempted to initiate a traffic stop. (Id. at ¶ 4.) Plaintiff claims that Del Rio attempted to evade the police, and during the course of that pursuit, collided with Plaintiff's car. (Id. at ¶¶ 5-6.) Del Rio also held his passenger hostage for hours until he was ultimately arrested. (Id. at ¶ 7.)

As to the Uber defendants, Plaintiff alleges that they allowed Del Rio access to the Uber platform after he had assaulted a police officer, or alternatively that the corporate defendants did not have a system in place to prevent drivers like Del Rio from accessing the platform after they committed a crime, and these failings constitute malice, oppression, or fraud. Additionally, Plaintiff claims that "officers, directors, or managing agents of the UBER DEFENDANTS knew of the above-described conduct from Defendant OSVALDO DEL RIO ... and adopted or approved that conduct after it occurred." (Id. at ¶¶ 50-51.)

The operative first amended complaint ("FAC") asserts causes of action for negligence and negligent hiring, training, supervision, and retention. Both claims are alleged against the Uber Defendants.

This hearing is on the Uber Defendants' motion to strike Plaintiff's punitive damages allegations. Uber argues that the FAC does not plead specific facts demonstrating that the Uber Defendants engaged in malicious, oppressive, or fraudulent conduct within the meaning of Civil Code section 3294, and at most, Plaintiff has claimed deficiencies in screening procedures which amount to a claim for simple negligence. Additionally, Uber argues that the FAC fails to satisfy the corporate ratification or authorization requirement of Civil Code section 3294(b) because Plaintiff fails to identify any specific individual officer, director, or managing agent, does not allege facts establishing their policymaking authority, and does not plead specific facts showing their advance knowledge, authorization, or ratification of the alleged misconduct. Lastly, Uber argues that it cannot be vicariously liable for punitive damages based on Del Rio's own alleged misconduct.

MEET AND CONFER

Code Civ. Proc. § 435.5 requires that before the filing of a motion to strike, the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc. § 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. §435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing its meet and confer efforts. (Code Civ. Proc. §435.5(a)(3).) The Uber Defendants submit the Declaration of Nataly Rahmo who attests that she met and conferred with Plaintiff's counsel by telephone on June 17, 2026 but the parties could not resolve the issues raised in the motion to strike. The Court concludes that the Uber Defendants have met their meet and confer obligations.

LEGAL STANDARD

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. §

436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Uber moves to strike Plaintiff’s claim for punitive damages. Uber argues that Plaintiff has not made any allegations that would support a finding of malice, oppression or fraud. The Court agrees.

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (citations omitted).)

Punitive damages may only be sought where there is clear and convincing evidence that the defendant has been guilty of malice, oppression or fraud:

(c)(1) “Malice” means conduct which is intended to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(c)(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(c)(3) “Fraud” means an intentional misrepresentation, deceit or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise

causing injury.

(Civ. Code §3294.)

Section 3294 was amended in 1987 to increase the burden of proof required in order to allege a punitive-damages claim as well as to raise the level of misconduct necessary for an award of punitive damages. The California Supreme Court has ruled that the insertion of the word “despicable” in section 3294 created a “new substantive limitation on punitive damage awards.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) “Despicable” means conduct that is “so vile, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (Scott v. Phoenix Schools, Inc. (2009) 175 Cal.App.4th 702, 715.) “Such conduct has been described as having the character of outrage frequently associated with [a] crime.” (Id.)

Punitive damages are disfavored by public policy and are allowed only under the most extreme circumstances and in the “clearest of cases.” (Woolstrum v. Mailloux (1983) 141 Cal.App.3d Supp. 1, 9.) “To contain the generosity and emotionality of juries, appellate courts have set the threshold high in defining situations in which punitive damages can be given. Conduct which may be characterized as unreasonable, negligent, grossly negligent or reckless does not satisfy the highly culpable state of mind warranting punitive damages. Conduct which warrants punitive damages must be of such severity or shocking

character [as] warrants the same treatment as accorded willful misconduct – conduct in which defendant intends to cause harm.” (Id. at 10 (internal quotations and citations omitted).)

A plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud, or malice. There is a heightened pleading requirement regarding a claim for punitive damages. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.) To plead with specificity means alleging who said what to whom, when and where it was said, and the circumstances under which the conduct occurred. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 64.)

Here, in support of her punitive damages claim, Plaintiff alleges Del Rio hit her while fleeing from the police. As to Uber, Plaintiff claims Uber did not properly screen Del Rio, allowed him to continue using the Uber platform even after he was “on the run,” and knew and approved of his actions. Plaintiff further alleges that the acts and/or omissions of Del Rio were “authorized, ratified, or committed by Defendants’ officers, directors, and/or managing agents within the meaning of California Civil Code § 3294(b).” There are no details supporting any of the above allegations.

What was Uber’s screening procedure? What was wrong with Uber’s screening procedure? What was Del Rio’s prior record? What would Uber have uncovered if they had done a “proper” screening procedure? How did Uber know about Del Rio’s conduct that day such that they can be said to have “allowed” him to continue to use the Uber platform despite his run-in with the deputy? What procedures should Uber have implemented such that it should have been aware of Del Rio’s conduct prior to the police chase? How did Uber “approve” of Del Rio’s actions? Which officer, director and/or managing agent of Uber authorized, ratified or committed the wrongful acts? How did they authorize, ratify or commit the wrongful acts? What did they say or do that creates the inference that they authorized, ratified or committed the wrongful acts?

The FAC is bereft of any of these details. This failure is particularly troubling because some of these conclusory allegations appear implausible. Can it truly be the case that Uber knew of Del Rio’s run in with the deputy earlier that day and “approved” of his acts, including holding an Uber customer hostage for hours? Plaintiff’s punitive damages claim simply lacks the specificity required to provide fair notice to the Uber Defendants.

CONCLUSION

For the foregoing reasons, the Court GRANTS Defendant’s motion to strike with 20 days’ leave to amend.

IT IS SO ORDERED.

DATED: August 21, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court